

## Sadre Alam v. Ajay Kumar Gautam, EE — further time to comply with Clause 6.5 consideration direction

High Court of Judicature at Allahabad · Single Judge · 8 June 2021 · Contempt Application (Civil) No. 1607 of 2021 (All.) · Contempt Application (Civil) No. 1607 of 2021 · **Prima facie civil contempt of a Clause 6.5 consideration direction found; Executive Engineer given six further weeks to comply; contempt application disposed of with liberty to apply afresh on continued default. Disputed assessment not examined.**

### HEADNOTE

Where a writ had already directed the Executive Engineer to consider a Clause 6.5 representation against a disputed assessment within a fixed time, alleged non-compliance was treated as prima facie civil contempt. The High Court granted one more six-week opportunity to comply and disposed of the contempt application with liberty to move afresh if default continued, without examining the bill.

### FACTUAL SUMMARY

The applicant, a consumer, had in Writ C No. 6882 of 2020 been relegated to a Clause 6.5 representation against a disputed assessment, with a direction that if he applied within two weeks the Executive Engineer would consider and dispose of it within six weeks. He says he submitted a certified copy on 12 March 2020 and the Executive Engineer wilfully failed to comply. He sought punishment under Section 12 of the Contempt of Courts Act, 1971.

### HOLDING-UNITS

#### HOLDING-UNIT · UP-2005::6.5

contempt of Clause 6.5 consideration direction

#### HOLDING

A civil contempt alleging that the Executive Engineer failed to consider a Clause 6.5 representation, as already directed by the writ court, does not reopen the disputed assessment. Where a prima facie case of non-compliance is made out, the Court may grant a further time-bound opportunity to dispose of the 6.5 representation in accordance with law and close the contempt with liberty to apply afresh on continued default. ¶ 1

### PRINCIPLE TAGS

**contempt-of-6.5-writ-does-not-redecide-bill** The Court enforced the earlier 6.5 consideration direction by granting further time and did not examine or redecide the disputed assessment. ¶ 1

**clause-6.5-statutory-remedy-disputed-bill** The underlying writ had confined the consumer to a Clause 6.5 representation against the disputed assessment; this contempt only polices compliance with that statutory forum. ¶ 1

### NOT DECIDED — NEGATIVE AUTHORITY

#### NOT DECIDED — CORRECTNESS OF THE DISPUTED ASSESSMENT

The Court did not examine the bill or other allied issues under Clause 6.5. ¶ 1

#### NOT DECIDED — FINAL FINDING OF CIVIL CONTEMPT

Only a prima facie case was recorded; one more opportunity to comply was granted and the application was disposed of at this stage. ¶ 1

